

23STCV14250 23STCV14250

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Case Number: 23STCV14250 Hearing Date: June 26, 2026 Dept: 408

Defendants General Sound Co. LTD., the Estate of Ronny Samimrad, and
Rozita S. Natanzi's Motion for Summary

Judgment, or in the alternative, Summary Adjudication is DENIED.

I.

BACKGROUND

On June 20, 2023, Plaintiff Behzad Binafard ("Plaintiff") filed a
complaint against Defendants General Sound Co. LTD., the Estate of Ronny
Samimrad, and Rozita S. Natanzi, as Trustee of the Ronny Samimrad Trust and
Executor of the Estate of Ronny Samimrad ("Defendants"), alleging causes of
action for:

1.

Breach of Contract;

2.

Common Counts: Money Lent;

3.

Common Counts: Money Paid;

4.

Common Counts: Open Book Account;

5.

Common Count: Account Stated;

6.

Fraudulent Concealment; and

7.

Accounting.

On September 15, 2023, Defendants
filed an answer to Plaintiff's complaint.

On September 5, 2025, the court denied
in part and granted in part Defendants' Motion to Quash Plaintiff's Deposition
Subpoena.

On February 11, 2026, Defendants filed
this Motion for Summary Judgment, or in the alternative, Summary Adjudication. On
April 10, 2026, Plaintiff filed an opposition. On June 15, 2026, Defendants
filed a reply.

II.

LEGAL STANDARD

"A party may move for summary judgment in an action
or proceeding if it is contended that the action has no merit or that
there is no defense to the action or proceeding. The motion may be made at
any time after 60 days have elapsed since the general appearance in the action
or proceeding of each party against whom the motion is directed or at any
earlier time after the general appearance that the court, with or without
notice and upon good cause shown, may direct." (Code Civ. Proc., § 437c, subd.
(1)(a).)

"[T]he party moving for summary judgment bears the burden of persuasion
that there is no triable issue of fact and that he is entitled to judgment as a
matter of law. That is because of the general principle that a party who seeks
a court's action in his favor bears the burden of persuasion thereon. There is
a triable issue of material fact if, and only if, the evidence would allow a
reasonable trier of fact to find the underlying fact in favor of the party
opposing the motion in accordance with the applicable standard of
proof." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 850 [citation
omitted].)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Aguilar, supra, at 850; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474, [applying the summary judgment standards in Aguilar to motions for summary adjudication].)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [citation omitted].)

“The trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. (Binder, supra, at 840 [citations omitted]; see also Weiss v. People ex rel. Dep’t of Transp. (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

III.

DISCUSSION

Defendants seek summary judgment on the first through seventh causes of action alleged in Plaintiff’s complaint. In the alternative, Defendants move for summary adjudication on the following issues:

[Issue No. 1] Plaintiff’s inability to establish an enforceable repayment obligation or any corporate

approval, implementation, or performance consistent with Plaintiff's alleged terms;

[Issue

No. 2] Plaintiff's

inability to establish standing or damages based on third-party payment evidence and the absence of any assignment, novation, authorization, or assumption by Defendants;

[Issue

No. 3] Plaintiff's

inability to impose liability on Rozita S. Natanzi, the Trust, or the Estate due to the absence of any agreement, representations, creditor claim, or written assumption; and

[Issue

No. 4] Plaintiff's

inability to establish fiduciary duty or entitlement to an accounting.

A.

Evidentiary Objections

The court declines to rule on the evidentiary objections submitted, pursuant to Code of Civil Procedure section 437c(q), i.e., "[i]n granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion". (Code Civ. Proc., § 437c, subd. (q).)

B.

Merits

As

an initial matter, Defendants failed to carry their initial burden of demonstrating the nonexistence of any triable issue of material fact. The crux of Defendants' motion argues that the purported agreement between Plaintiff, Decedent Ronny Samimrad ("Decedent"), and Defendant General Sound Co. LTD. ("General Sound") pertains to an investment in General Sound rather than a loan whereby Defendants had an obligation to repay as alleged in Plaintiff's complaint. (MSJ, at p. 5; Undisputed Material Facts ("UMF"), Nos. 1-3.) However, from a review of the

agreement terms, it appears that the parties deemed the transaction as a loan of \$630,305.00

from Plaintiff to General sound imposing an obligation to repay “[i]f Samimrad is unable or unwilling to continue to operate the day-to-day business of the Corporation...” and which presumably became due when Decedent died on April 15, 2023. (Defendants’ Compendium of Exhibits (“COE”), Exh. 2, at p. 1.) The court cannot make the determination that the agreement was an investment and not a loan as a matter of law, much less that there is no repayment obligation despite the terms of the agreement.

The existence of such disputed material fact precludes the court from making a determination on any cause of action asserted and Defendants failed to set out any meritorious argument to adjudicate any of the issues presented.

Accordingly, the motion is denied.

IV.

CONCLUSION

Defendants General Sound Co. LTD., the Estate of Ronny Samimrad, and Rozita S. Natanzi’s Motion for Summary Judgment, or in the alternative, Summary Adjudication is DENIED.